



AGENCY ROOFING CO.

Built with agency. Driven by obligation.

INSURANCE REPAIR AGREEMENT

(505) 900-1711
agencyroofingco@gmail.com
Albuquerque, New Mexico
NM Lic. # _____

INSURANCE & PROPERTY INFORMATION

Homeowner:	Date of Loss:	Insurance Company:
Homeowner Address:	Original Roof Type:	Policy Number:
City, State, Zip:	Email:	Claim Number:
Cell Phone:	Company Representative:	Adjuster Name:

- Preamble.** This Insurance Repair Agreement (the "Agreement") is made between Agency Roofing Co. LLC (the "Contractor") and the above-named Client (together, the "Parties").
- Purpose & Governing Law.** The Contractor agrees to provide roofing repair or replacement services to the Client's property, contingent on insurance claim approval. This Agreement is governed by the laws of the State of New Mexico, and any disputes shall be resolved in New Mexico courts.
- Insurance Approval.** This Agreement takes effect only if the Client's insurance provider approves the claim. Upon approval, the Client agrees to hire the Contractor to complete the work as outlined in the insurer's scope of repairs. If the claim is denied, the Client may choose to void this Agreement or proceed at their own expense under mutually agreed terms.
- Communication with Insurance Provider.** The Client authorizes the Contractor and its representatives to communicate directly with the Client's insurance provider for purposes such as documentation, scope discussions, and coordination. The Contractor is not acting as legal counsel and makes no guarantees of claim approval. Contractor has no obligation to communicate with the insurer unless this Agreement has been executed.
- Retention of Contractor & Cancellation.** If the claim is approved and the Contractor assisted with the process, the Client agrees to hire the Contractor for the work. If the Client hires another contractor instead, the Client shall pay Contractor 10% of the approved claim amount as compensation for services rendered.
 - Nonpayment of this fee may be pursued in court, and the Client agrees to cover reasonable attorney's fees if the Contractor prevails.
 - The Client may cancel this Agreement, without penalty, any time before claim approval by providing written notice to Contractor.
- Deductible.** The Client is solely responsible for paying any deductible required by their insurance policy. This amount is payable to the Contractor at the start of work, unless otherwise agreed in writing.



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- 7. Assignment of Insurance Benefits.** The Client assigns to the Contractor the right to receive insurance proceeds for the roofing project. If funds are issued to the Client, they agree to promptly endorse and deliver them to the Contractor. Contractor is not required to begin work until all required payments are received.
- 8. Additional Work & Upgrades.** Work beyond the insurer's approved scope (including elective upgrades) requires a signed change order. Such work will be billed at the Contractor's standard rates or as otherwise agreed in writing, with payment due upon completion. Deposits may be required for elective upgrades.
- 9. Client Responsibilities.** The Client shall provide timely access to the property and cooperate in claim processing, inspections, and project completion. Delays caused by lack of access or cooperation may extend project timelines or result in additional charges.
- 10. General Provisions.**
- a. Entire Agreement: This document is the full agreement between the Parties. Modifications must be in writing and signed.
 - b. Binding Effect: This Agreement benefits and binds the Parties and their successors/assigns.
 - c. Severability: If any provision is invalid, the remainder remains enforceable, and a valid substitute shall apply.
 - d. Amendment/Waiver: Changes or waivers must be in writing and signed.
 - e. Enforcement: The prevailing Party in enforcement proceedings may recover reasonable attorney's fees and costs.
 - f. Voluntary Execution: The Parties acknowledge they have read, understand, and voluntarily sign this Agreement.

IN WITNESS WHEREOF, the Parties agreed to be bound by the terms and conditions of this Agreement.

Agency Roofing Co. Representative Date

Homeowner Date